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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

Name: Crystal Carpenter
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General Comment

See attached file(s)

Attachments

ccarp_aiactcomment

March 15, 2025

From:
Crystal Carpenter
Illustrator/Sculptor

*Re: National Science Foundation's Request for Information on the
Development of an Artificial Intelligence (AI) Action Plan*

I am an American who owns a small illustration and sculpting business. Like all of my artist colleagues, hard work, time, and money was invested into my knowledge and skills, so that I can create artwork for my audience to enjoy and make sure that my business thrives. These skills took years to develop, but recently this investment has come under threat.

Big tech companies such as OpenAI (Microsoft) and Google threaten to destroy small businesses such as mine, by ignoring copyright laws, and now by demanding to create special carve-outs in copyright law.

The generative AI systems which we currently see were trained on the hard work of artists such as myself, but without our consent, and without proper compensation. This is why we are seeing a number of lawsuits against these companies by creatives, I am not alone in reasoning that these companies are a threat to our small businesses due to the way they are currently training their generative AI systems. Already, we are seeing how this can directly harm artists, by stealing, reassembling, and selling it back to our clients, and by cutting us out of the marketplace. It is not fair use when it competes with the original creator.

Now these big tech companies are asking for this administration to create exceptions, giving them permission to continue this unfair practice, allowing them to steal what they do not own. While copyright law is meant to protect the incentive to create, these big tech companies are aiming to erode this incentive for the sake of profit for themselves. This of course harms small businesses such as mine.

This will take away the incentive to create and innovate. Why should any creator put their work into the world if that work is immediately taken by a massive company without compensation? However, creators are not the only casualty of this unfair practice. This could inadvertently harm the aim to be at the forefront of innovation in AI. Generative AI is only as good as the material it was trained on, and they require new material in order to function. If no one is willing to create due to the unfair, one sided handout to large companies, innovation stops.

If one truly cares about small American businesses, and innovation in AI, then protect American creators. Help us advocate for the ethical development of AI. The first step: Do not create copyright exemptions which allow big tech companies to exploit and steal from creators such as myself. We must instead implement a standard of consent, compensation, and transparency.

The action plan should include consent from artists and creatives, giving the power back to Americans who have worked hard to produce these creative works. It should be in our hands to decide when and where our work is used by AI systems.

This plan should also encourage a licensing marketplace, so that the incentives to create are preserved. Our creative work has economic value, which even the big tech companies understand that they depend on, and the people who invested the effort in that work should be able to rightfully profit off their own work. This also puts control back into the hands of the hard working Americans who created the data.

Finally, we should expect transparency from big tech companies, requiring them to disclose what material is in their training datasets, and AI generated content should be labeled so that the consumers have full knowledge of what they are viewing.

Thank you for the opportunity to comment. I hope that you put American small business owners first, by protecting our creative rights, and not allowing big tech to run unchecked.